

OFFICE OF THE SECRETARY

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September 3, 2024

The Honorable Joan P. Weber
Judge of the Superior Court
County of San Diego
1100 Union Street
San Diego, CA 92101

Re: AGUILAR, MIGUEL G
CDCR No: BD1837
Case No: SCD268056-A
Date of Sentence: April 18, 2017

Dear Honorable Joan P. Weber:

The purpose of this letter is to provide the court with the authority to resentence incarcerated person Miguel Aguilar, BD1837, pursuant to Penal Code (PC) Section 1172.1, Subdivision (a)(1), based upon a change in sentencing law. PC 1172.1(a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may consider recalling a previously ordered sentence, provided the new sentence is no greater than the initial sentence. As of June 27, 2018, a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

Incarcerated person Aguilar was sentenced on April 18, 2017, pursuant to a conviction via plea agreement and sentenced as a second-strike offender on one count of PC 245(a)(4), Assault likely to produce Great Bodily Injury, with count enhancements of PC 12022.7(a), Great Bodily Injury, and PC 12022(b)(1), Personal Use of a Dangerous or Deadly Weapon. Aguilar received a case enhancement of PC 667(a)(1), Prior Felony Conviction of Serious Offense. Aguilar received a total sentence of 13 years, and has an Earliest Possible Release Date of April 9, 2026.

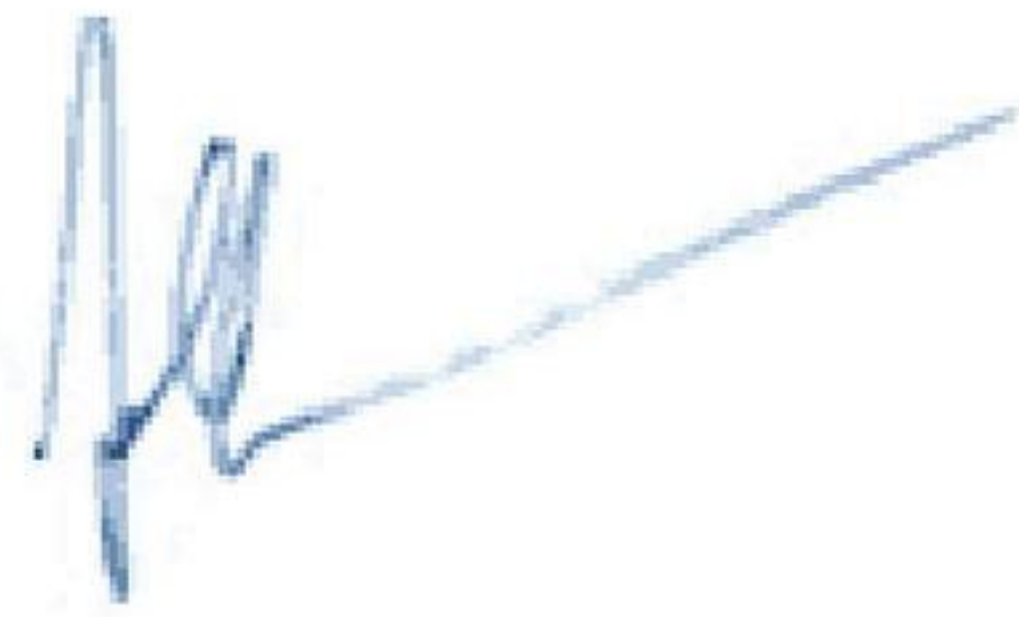
The enhancement pursuant to PC 667(a)(1), provides for the imposition of a consecutive five-year enhancement on any person convicted of a serious felony for each previous conviction of a serious felony (or other qualifying conviction) brought and tried separately. Courts were previously barred from striking prior serious felony convictions for purposes of enhancement under this section. However, effective January 1, 2019, courts are now authorized to exercise their discretion to strike prior serious felony convictions for purposes of enhancement under this section, or to strike the punishment for the enhancement under this section, pursuant to

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PC 1385.

The incarcerated person's case factors have been compiled and thoroughly reviewed. In light of the court's newfound authority, and after personally reviewing their commitment offense and in-prison conduct, I recommend that Aguilar's sentence be recalled and that they be resentenced in accordance with PC 1172.1(a)(1).

Sincerely,

A handwritten signature in blue ink, appearing to read 'Jeff Macomber', with a long horizontal stroke extending to the right.

JEFF MACOMBER
Secretary

Enclosures:
Cumulative Case Summary
Abstract of Judgment
Minute Order
Information Summary

cc: The Honorable Michael T. Smyth, Presiding Judge
San Diego County District Attorney's Office
San Diego County Public Defender's Office